

JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT
JUDGMENT

I.C.A. No.121623/2017

The Water and Power **VS.** Jehansher, Junior Engineer etc.
Development Authority etc.

Date of hearing : 10.11.2020

Appellants by : Mr. Aurangzeb Mirza, Advocate

Respondents by : Hafiz Tariq Naseem, Advocate

Ch. Muhammad Iqbal, J:- This Intra Court Appeal under Section 3 of the Law Reforms Ordinance, 1972 is directed against the order dated 17.04.2017, passed by the learned Single Judge in Chamber whereby Writ Petition No.17047/2015 of the respondents was accepted and the corrigendum dated 19.02.2014 as well as order dated 14.04.2015, issued by the appellants, were set aside.

2. Brief facts of the case are that the appellants, through publication in daily newspaper “Dawn” on 28.05.2013, invited application for the posts of Junior Engineers (Electrical, Mechanical & Electronics) for O&M of WAPDA Khwar Hydel Power Stations Districts Kohistan and Shangla, KPK on purely temporary/ad-hoc basis for a period of six months. In response to the said advertisement, the respondents were appointed on 08.10.2013 on ‘contract basis’ but later on, the appellants issued a corrigendum dated 19.02.2014 for the correction of the appointment letters as ‘ad-hoc basis’ instead of ‘contract basis’.

On 25.11.2014 period of respondents' employment was further extended purely on adhoc basis. In the meanwhile the appellants regularized the services of many Junior Engineers vide letter dated 18.03.2013. The respondents filed representation before the appellant and also filed Writ Petition No.7121/2015 with the request for regularization of their service. This Court, vide order dated 13.03.2015 transmitted their writ petition to the General Manager, (Hydel) Operations, WAPDA/ appellant No.3, with the direction to treat the same as part of the pending representation of the respondents and decide the same strictly in accordance with law. The competent authority / appellant No.3 dismissed the said representation vide order dated 14.04.2015, which order was assailed by the respondents through Writ Petition No17047/2015. The learned Single Judge in Chamber by allowing the said writ petition vide order dated 17.04.2017 set aside the corrigendum dated 19.02.2014 as well as order dated 14.04.2015 with direction to place the cases of the respondents' regularization before the concerned board and also restrained the appellants to fill the posts, against which the respondents are working, till the completion of the process of regularization. Hence, this Intra Court Appeal.

3. We have heard the arguments of learned counsel for the parties and have gone through the record with their able assistance.

4. The appellants (WAPDA), under Section 18 of the Pakistan Water and Power Development Authority Act, 1958, has power to frame a procedure for appointment of its employees. For ready reference, aforesaid provision is reproduced as under:

“Recruitment and condition of service and disciplinary power

18. The Authority shall prescribe the procedure for appointment and terms and conditions of service of its officers and servants, and shall be competent to take disciplinary action against the officers and servants.”

Under the aforesaid provision, the appellants (WAPDA) made Recruitment Policy dated 29.01.1992, wherein the procedure for recruitment of officers, BS-16 and above, has been prescribed as under:

- a. All the recruitment will be made through competitive examination. Objective type of tests to determine suitability for specific posts will be organized.
- b. The prescribed application form for recruitment of officers in BPS-16 & above shall be as per Annexure 'B'.
- c. Examination Cell of WAPDA shall be responsible for the conducting of objective type of tests and the result shall be communicated to the Managing Director (Admn), Chief Engineers Incharge of Administration or officers controlling the cadre."

5. Learned counsel for the respondents raised objection that the respondents were appointed on contract basis and not on ad-hoc basis. At this stage, we requisitioned the original record from the appellant-department which reveals that the applications were invited for the recruitment of Junior Engineers on ad-hoc appointments. Appellant/Chairman WAPDA constituted a committee comprising Member Finance and Member Water to find out an avenue to recruit Junior Engineers by relaxing the settled mode of appointment in order to cope with the emergent needs of the department. The said committee on the basis of a decision made in general meeting convened by the Chairman WAPDA on 06.05.2013 decided to appoint Junior Engineers (Power) on ad-hoc basis through the summary process of walk-in-interview. The minutes of meeting, on which basis the publication was made for the appointment of suitable candidates, are reproduced as under:

Subject : ACTUE SHORTAGE OF JUNIOR ENGINEERS (POWER) AND THEIR ENGAGEMENT ON AD-HOC BASIS.

1. Acute shortage of Junior Engineers (Power) is being faced at different Hydel Power Stations & Formations of WAPDA. Ninety One (91) posts of Junior Engineers are vacant at present. (F/A) This situation may get worse on promotion of Engineers and requirement of engineers upon commissioning of new Hydel Power Stations i.e. Allai P/H is under test run

whereas commissioning of Gomal Zam and Duber Khwar is expected in near future.

2. The present position of vacant posts of Engineers is badly affecting the O&M of Hydel Power Stations. Besides, the lag between sanction strength & vacant posts at all levels of hierarchy is increasing day by day. This situation is also badly affecting the promotions, which is demoralizing the Engineers on the other hand the Engineers are lacking technical knowledge.
3. The recruitment process has been started which will take time. As such, there is no option other than utilization of the services of Junior Engineers from the market by engaging them on ad-hoc basis.
4. Presently Khwar Projects and Gomal Zam Dam Project urgently / critically need the services of at least Sixteen Jr. Engineers, Ten for the O&M of Khwar Projects and Six for the O&M of GZDP.
5. Advertisement may be made on the Notice Boards of WAPDA House, Lahore O/O C.E (O&M) 3-H.H.P. Besham, O/O C.E (Hydel) Chashma and O/O P.D. Gomal Zam Dam Project D.I. Khan by observing following parameters:
 - i. Walk in interviews by a selection board (constituted by Member Power) at Wapda House Lahore in the O/O G.M.(Hydel) Opr.
6. Following terms & conditions will apply on them (Jr. Engineers ad-hoc basis)
 - i. Period will be of six month initially and extendable on the recommendation / requirement of concerned office, with the approval of G.M (Hydel) Opr.
 - ii. Pay package and fringe benefits as allowed to other Jr. Engineers (on the same station) will be admissible to them.
 - iii. They will be governed under relevant/(E&D) Rules or any other rule/condition, enforced by the Authority from time to time.
 - iv. They will not be brought on contract / regular cadre unless they pass through prescribed procedure of the selection of Jr. Engineers in WAPDA.
 - v. Their appointment will be only for the respective station for which they are appointed.
 - vi. Their job will not be transferable to any other Power Station / place.
 - vii. The terms and condition as enunciated in the appointment letter will also apply to them.
7. The case is recommended to engage 16 Junior Engineers on adhoc basis for O&M of Gomal Zam Dam Project and Khwar Projects through holding walk in interviews by a selection board (to be constituted by Member Power) at WAPDA House Lahore in the O/O G.M.(Hydel) Opr. on terms and conditions as enunciated in proceeding Paras-5 & 6.
8. The case is recommended for the approval of the Authority through circulation through the office of Director General (HR& Admn) please.

sd/.

Director (Hydel) Opr.

sd/.

C.E. (Hydel) Opr.

sd/.

Director Admn.

As per the advertisement dated 28.05.2013, published in daily “Dawn”, the post of Junior Engineer was to be filled on ad-hoc basis. After completion of selection process while issuing appointment letters on 08.10.2013 inadvertently the word ‘contract’ instead of ‘ad-hoc’ was written. To cure the said mistake/ error, a corrigendum dated 19.02.2014 was issued in this regard clarifying that the respondents would be considered as ad-hoc appointees. The period of service of respondents was extended on ad-hoc/purely temporary basis for further one year on 25.11.2014. As such, the argument of learned counsel for the respondents that the respondents were appointed on contract basis, is hereby repelled.

As evinces from the aforesaid minutes of meeting as well as the advertisement the respondents were recruited on ad-hoc basis for six months only through mode of walk-in-interview by making relaxation of normal mode of competitive examination and under the prescribed rules, they were not entitled to be regularized unless they appear in the prescribed competitive examination and stand on the merit for the post of Junior Engineers in WAPDA. But even today on the Court’s query the respondents showed their complete dis-agreement to appear in the competitive examination, as prescribed in the policy as well as above texted minutes of meeting.

6. The respondents were appointed through a summary recruitment process termed as “walk-in-interview”, which has already been declared by the learned Single Judge in Chamber of this Court as non-transparent and violative to the rules of competition as well as amounting to grant of undue advantage over the other talented candidates. The said judgment was upheld by the learned Division Bench of this Court, in a case cited as GEPCO Vs. Malik Waqas Ahmad and others (PLD 2013 Lahore 339), by observing as under:

“5. In the recruitment process 432 persons have been appointed in 12 categories of posts. Only 138 persons, who were selected in the impugned selection process, have survived the scrutiny on the touchstone of merit, transparency and fairness. This means that 294 appointees under the impugned selection process had been accommodated on extraneous considerations. Their entry was ordered through a walk-in-interview process that finds no warrant or sanction in the existing rules and regulations. The impugned appointments to public posts made in relaxation of rules failed the test of merit to the extent of 67% of the appointees. The foregoing result is a gross violation of the rule of competition, transparency and fairness laid down for appointments to public office by the Hon'ble Supreme Court of Pakistan in *Mushtaq Ahmad Mohal and others v. The Honourable Lahore High Court, Lahore and others* (1997 SCMR 1043). Equally the selection based on interviews alone has been held to be most unreliable and arbitrary because the assessment is entirely subjective. Reliance is placed on *Waheed Ahmad and another v. Executive District Officer (Revenue) Faisalabad and others* (2012 PLC (C.S.) 733).”

7. The Hon'ble Supreme Court of Pakistan has resolved this controversy, in a similar case cited as *Dr. Naveeda Tufail and 72 others Vs. Government of Punjab and others* (2003 SCMR 291), by sending the case of ad-hoc employees to the Public Service Commission and held that in case any of the ad-hoc employees is not found suitable, he shall not be entitled to be retained in service. Relevant portion of the judgment (supra) is reproduced as under:

“12. We having examined the above scheme find that in the similar circumstances, the Federal Government while giving fair treatment to its employees appointed on ad hoc basis successively framed policies for regularization through the process of selection by the Public Service Commission. It is stated that all Provincial Governments, except Government of Punjab, following the Federal Government also adopted the policy of regularization and gave their employees the equal treatment. The petitioners, being ad hoc employees of Provincial Government, cannot claim regularization as of right in the light of policy of Federal Government but the principle of equality as embodied in Article 25 of the Constitution of Islamic Republic of Pakistan, 1973, would demand that they while facing the similar circumstances, should be treated in the same manner. The principle of equality would impliedly be attracted in favour of the petitioners as they being ad hoc lecturers in the Provincial Government, would stand at par to that of the ad hoc employees of the Federal Government and therefore, it would be fair, just and proper to consider their cases for regularization. We having heard the learned counsel for the petitioners and Mr. Maqbool Elahi Malik, learned Advocate-General Punjab, assisted by Mr. Tariq Mahmood Khokhar, Additional Advocate-General, are of the view that since substantial questions of public importance are

involved in the present petitions, therefore, the technical objection that the questions not raised before the Tribunal, cannot be allowed to be raised before this Court, is not entertained. The authorities in the Education Department, Government of Punjab, while adopting the method of ad hoc appointments as a continuous policy, created a legitimate expectancy in the mind of petitioners for their retention on regular basis and therefore, we deem it proper to direct that the respondents while seeking guidance from the scheme of regularization of ad hoc employees of Federal Government referred above, will initiate the process of regularization of the petitioners through Punjab Public Service Commission giving the concession as mentioned in the reply filed by the respondents in the Punjab Service Tribunal within a period of one month and meanwhile without prejudice to the right of the selectees of the Public Service Commission for appointment on regular basis, the posts which were being held by the petitioners shall not be filled. It is clarified that the cases of the petitioners shall be sent separately to the Public Service Commission and shall not be tagged with the direct recruits. In case any of the petitioners is not found suitable, by the Public Service Commission, he shall not be entitled to be retained in service.

8. Furthermore, the respondents were appointed on ad-hoc basis in relaxation of the settled mode of law and they have no lawful right to claim extension or regularization of their services without following the prescribed policy. The ad-hoc appointees could not be regularized, as the ad-hoc employee has neither any right to hold the post beyond prescribed period nor the Government owes any obligation to maintain continuity in their service for unlimited period, as settled by the Hon'ble Supreme Court of Pakistan in a case titled as Abu Bakar Farooq through Chairman and Others Vs. Muhammad Ali Rajpar and Others (2019 SCMR 830), relevant portion whereof is reproduced as under:-

“13. The fact of the matter remains that neither the ad hoc employee has right to hold the post beyond the period for which he was appointed nor the government has a right to continue with such ad hoc appointees for such a long period. This situation arises only when the government violates the provision of Rule 3 of the Federal Public Service Commission (Functions) Rules, 1978 and without placing a requisition before Commission for regular appointment fill the post on ad hoc basis and then keep on extending the period of such ad hoc appointment and the ad hoc appointee knowing fully well that his ad hoc appointment is not in accordance with the prescribed method of appointment and is only a "stop gap" arrangement, till recruitment in accordance with the prescribed method of Appointment is made, clings to such post. Such conduct of the government has always been deprecated by the Courts but such shortcoming/non-adherence to the legal requirements by the competent authority can earn no benefit for the incumbent for the simple reason that bestowing the benefits of regular

appointment upon an ad hoc employee would not only amount to regularizing unlawful appointment and providing premium to the beneficiary of such wrong but would also amount to opening another door of entry into service of Pakistan by frustrating the only prescribed mode of appointment through the Commission.”

Reliance is also placed on the cases titled as Muhammad Wasay Tareen v. Chief Justice of Balochistan through Registrar of High Court of Balochistan, Quetta (2005 SCMR 464) and Mrs. Naila Khalid v. Pakistan through Secretary Defence and others (PLD 2003 SC 420).

The aforesaid material aspects of the case have not been considered in the impugned order which is liable to be reversed.

9. Resultantly, this Intra Court Appeal is allowed and by setting aside the order dated 17.04.2017 the Writ Petition No.17047/2015 filed by the respondents is hereby dismissed.

(Shahid Waheed)
Judge

(Ch. Muhammad Iqbal)
Judge

Abdul Hafeez

Approved for reporting.

Judge